

market value of their interests in the Restriction Area on the date of execution of this Conservation Restriction. For this purpose, the Grantee's interest shall be the amount, expressed as a percentage interest, by which the fair market value of the restricted land immediately prior to the execution of this Conservation Restriction is reduced by the restrictions imposed hereby. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purposes set forth herein.

9. Binding Effect; Enforcement. The burdens of the Conservation Restriction shall be deemed to run with the Restriction Area and shall be enforceable against the Grantor and his successors in title in perpetuity. This Conservation Restriction shall be in addition to and not in lieu of any other restrictions or easements of record affecting the Restriction Area. Nothing contained in the Conservation Restriction shall impose on the Grantee any duty to maintain or require that the Restriction Area be maintained in any particular state or condition, notwithstanding its acceptance hereof.

In the event that a breach of this Conservation Restriction by the Grantor or by a third party comes to the attention of the Grantee, the Grantee shall notify the Grantor in writing of such a breach. The Grantor shall, within 30 days after receipt of such notice, undertake actions reasonably calculated to cure the conditions constituting such a breach. If the Grantor fails to take such corrective action, the Grantee may at its discretion

undertake any and all actions reasonably necessary to cure said breach. In addition, the Grantee shall have the right to enforce this Conservation Restriction by proceedings at law or in equity, including the right to obtain injunctive relief. In the event a court of competent jurisdiction decrees that the Grantor has caused or allowed a breach of this Conservation Restriction, the Grantor shall bear the cost of corrective action, including repair or restoration as appropriate, and shall reimburse the Grantee for legal fees incurred in the enforcement of this Conservation Restriction. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver. If any provision of this Conservation Restriction shall to any extent be held invalid, the remainder shall not be affected.

10. Recording; Effective Date. This Conservation Restriction may be recorded prior to approval thereof by the Selectmen of the Town of Boxford and by the Secretary of Environmental Affairs, or either of them and, if so recorded, shall be re-recorded when such approvals have been obtained. Such approvals shall be effective as of and shall relate back to the date of this instrument.

Inasmuch as there is no monetary or other consideration of substance for this Conservation Restriction, no Massachusetts documentary stamps are affixed hereto.

IN WITNESS WHEREOF, the said Nathaniel S. Coolidge has
hereunto set his hand and seal this 29th day of October, 1992.

Nathaniel S. Coolidge
Nathaniel S. Coolidge

COMMONWEALTH OF MASSACHUSETTS

Suffolk, ss.

, 1992

Then personally appeared before me the above-named Nathaniel S. Coolidge and acknowledged the foregoing instrument to be his free act and deed.

Dorothy Peterson
Notary Public
My commission expires:
My Commission Expires May 15, 1994

Essex County Greenbelt Association, Inc. hereby accepts this Conservation Restriction and agrees to be bound by its terms.

Essex County Greenbelt
Association, Inc.

Date: 23 November 1992 By: [Signature]
hereunto duly authorized

APPROVAL BY SELECTMEN-TOWN OF BOXFORD

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that we approve the foregoing Conservation Restriction for the preservation of the natural and scenic resources of said Town pursuant to G.L. c. 184, Section 32.

Date: Nov. 23, 1992

Robert J. Halloran
Robert J. Halloran
Robert J. Halloran

APPROVAL BY SECRETARY OF ENVIRONMENTAL AFFAIRS

The undersigned Secretary of the Executive Office of Environmental Affairs, Commonwealth of Massachusetts, hereby certifies that he approves the foregoing Conservation Restriction pursuant to G.L. c. 184, Section 32.

Date: 12.21.92

Susan F. L...
 Secretary of Environmental Affairs

KEY MAP

SAND B.
BECALL
NIF ARTHUR R. &
CONSTANCE MILLEY

TOTAL AREA = 62.97 ± ACRES
(INCLUDES SUB-AREAS A, B & C)

$$AREA = 44.94 \pm AC$$
$$AREA = 10.2935$$

N/F
ESSEX COUN
GREENBELT
ASSOCIATION

AREA

NO.

A B C D E F G H I J K L M N O P Q R S T U V

AREA B

AREA = 7.7264 ± ACRES

N/F
DAMON
LYONS

LOT 1A

AREA =
2.0011 ± AC.

JOHN N.
& LINDA S.
DOWNES

DUGHTY

TOPSFIELD ROAD

LOT 1B

AREA = 7,171 ± S.F.

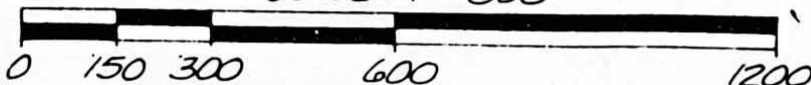
1991 CONSERVATION RESTRICTION

PROPOSED 1992 CONSERVATION RESTRICTION

KEY MAP

NAT COOLIDGE PROPERTY, BOXFORD

SCALE: 1"=300'



APPROVAL
CONTROL &
BOXFORD

Draft

GRANT OF TRAIL EASEMENT

I, Paul M. Barclay, Trustee of the Evergreen Farm Real Estate Trust, under Declaration of Trust dated July 2, 1997 and recorded with the Essex South District Registry of Deeds in Book 14224, Page 273, for CONSIDERATION of \$1.00 paid, the receipt and sufficiency of which are hereby acknowledged, GRANT with quitclaim covenants, to BTA/BOLT, Inc. ("BTA/BOLT"), a nonprofit organization incorporated under the laws of the Commonwealth of Massachusetts and having an address of P.O. Box 95, 7 Elm Street, Boxford, Massachusetts 01921, its successors, and permitted assigns, the perpetual right and easement to use, construct, inspect, renew, replace, operate, forever maintain, and to do all other acts incidental to the foregoing, including the right to pass along, over, in, through, and under the Easement Area shown as a "10 Foot Wide Trail System Easement" on a plan attached hereto as Exhibit A. Said Trail System Easement is located entirely within the Restricted Area of a Conservation Restriction granted to BTA/BOLT and recorded with said Registry in Book 13333, Page 88 and within the Restricted Area of a Conservation Restriction granted to Essex County Greenbelt Association, Inc. recorded with said Registry in Book 11004, Page 223 and Book 11677, Page 122.

Consists of a network of trails

This Easement shall be used for passive and non-motorized recreational purposes only, including access by foot, horseback, cross country ski, snowshoe, and non-motorized bicycle. The primary purpose of this Easement is to provide permanent and perpetual public recreational use of the Easement Area and to locate the Easement so that it provides public recreational access. The use of any type of motorized vehicle is specifically prohibited within the Easement Area, except as required to complete any necessary trail maintenance and for access by emergency vehicles.

BTA/BOLT, its successors, and permitted assigns shall have the perpetual right, but not the obligation, to maintain the Easement Area for all purposes aforesaid and for uses incidental thereto, including but not limited to trimming limbs and branches within said Easement Area.

BTA/BOLT, its successors, and permitted assigns shall maintain the trail, necessary bridges, and all other improvements within the Easement Area in a neat, functionally adequate and safe condition, shall maintain all areas within the Easement Area free from debris and cuttings, and shall have the right to post trail markings with small signs and/or paint blazes consistent with other trail markings in the Town of Boxford.

Said Trail System Easement is subject to the trail use restrictions specified in clauses (a) through (g) of Paragraph 4 of the Conservation Restrictions to BTA/BOLT and Essex County Greenbelt Association, Inc. referenced above.

Pursuant to Mass. Gen. L. ch. 21, § 17c, the Grantor or its successors and assigns shall not be liable for injuries to persons or property sustained by any member of the public who uses this Easement in the absence of willful, wanton, or reckless conduct by BTA/BOLT or its successors and permitted assigns.

For my title, see deed from Nathaniel S. Coolidge dated January 31, 2000 and recorded with the Essex South District Registry of Deeds in Book 16179, Page 127.

Witness my hand and seal this _____ day of _____, 2004.

EVERGREEN FARM REAL
ESTATE TRUST

Paul M. Barclay, Trustee of the Evergreen
Farm Real Estate Trust

COMMONWEALTH OF MASSACHUSETTS

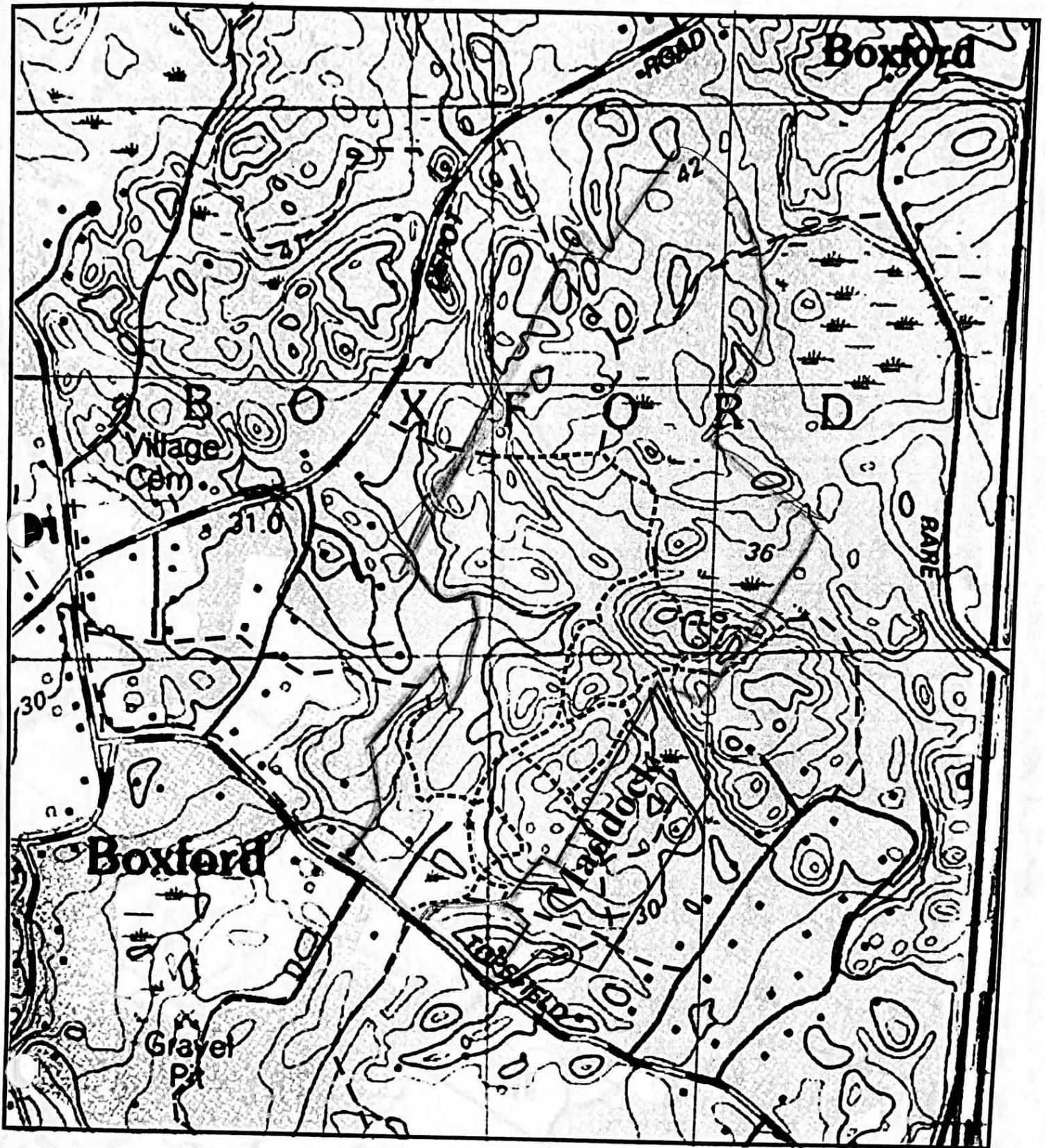
Essex, ss. _____, 2004

Then personally appeared the above-named Paul M. Barclay, Trustee of the
Evergreen Farm Real Estate Trust, and acknowledged the foregoing to be his free act and
deed and that of the Grantor realty trust before me

Notary Public
My Commission Expires: _____

100 Acre Woods

Trails



Witness my hand and seal this _____ day of _____, 2004.

EVERGREEN FARM REAL
ESTATE TRUST

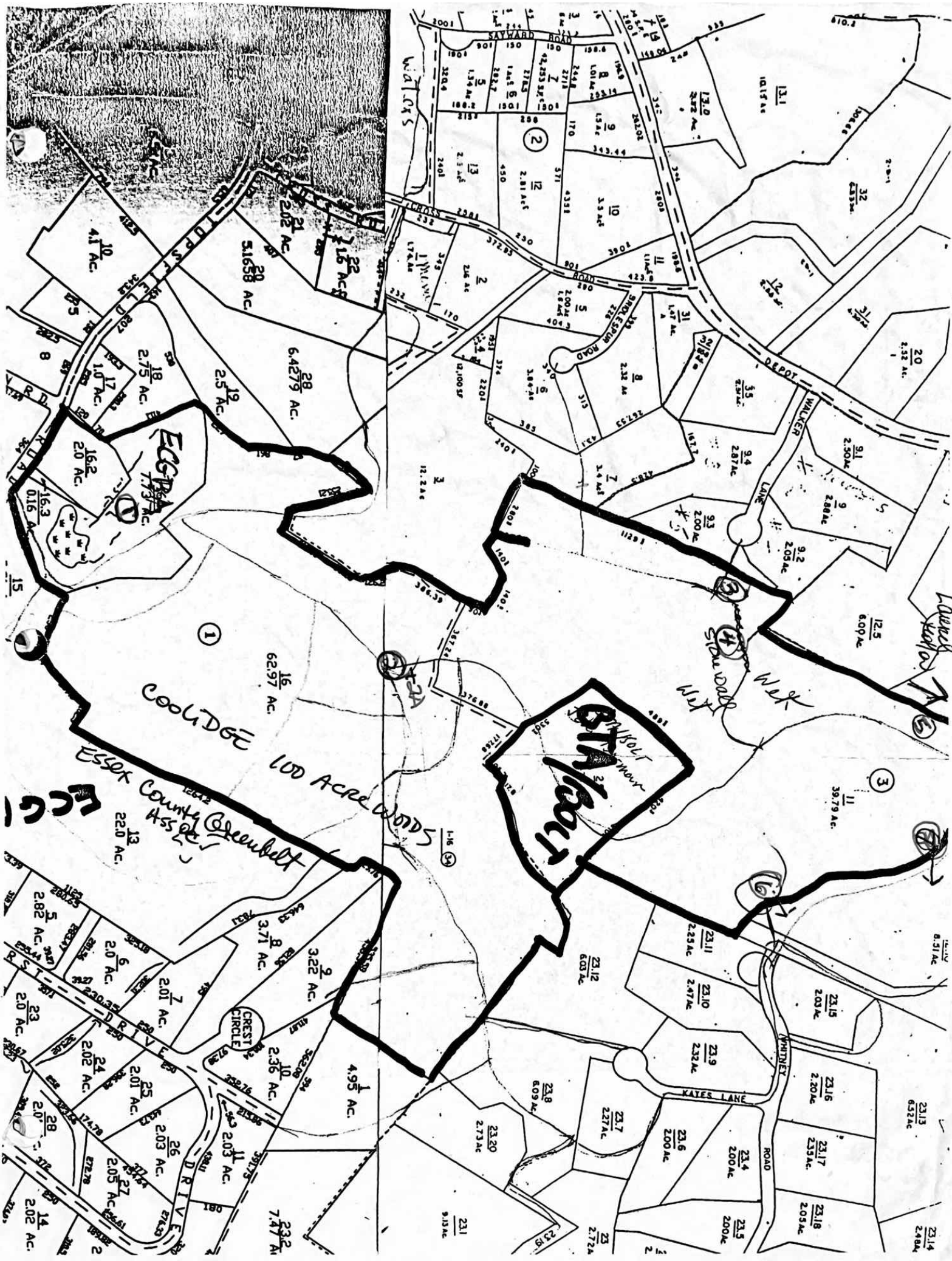
Paul M. Barclay, Trustee of the Evergreen
Farm Real Estate Trust

COMMONWEALTH OF MASSACHUSETTS

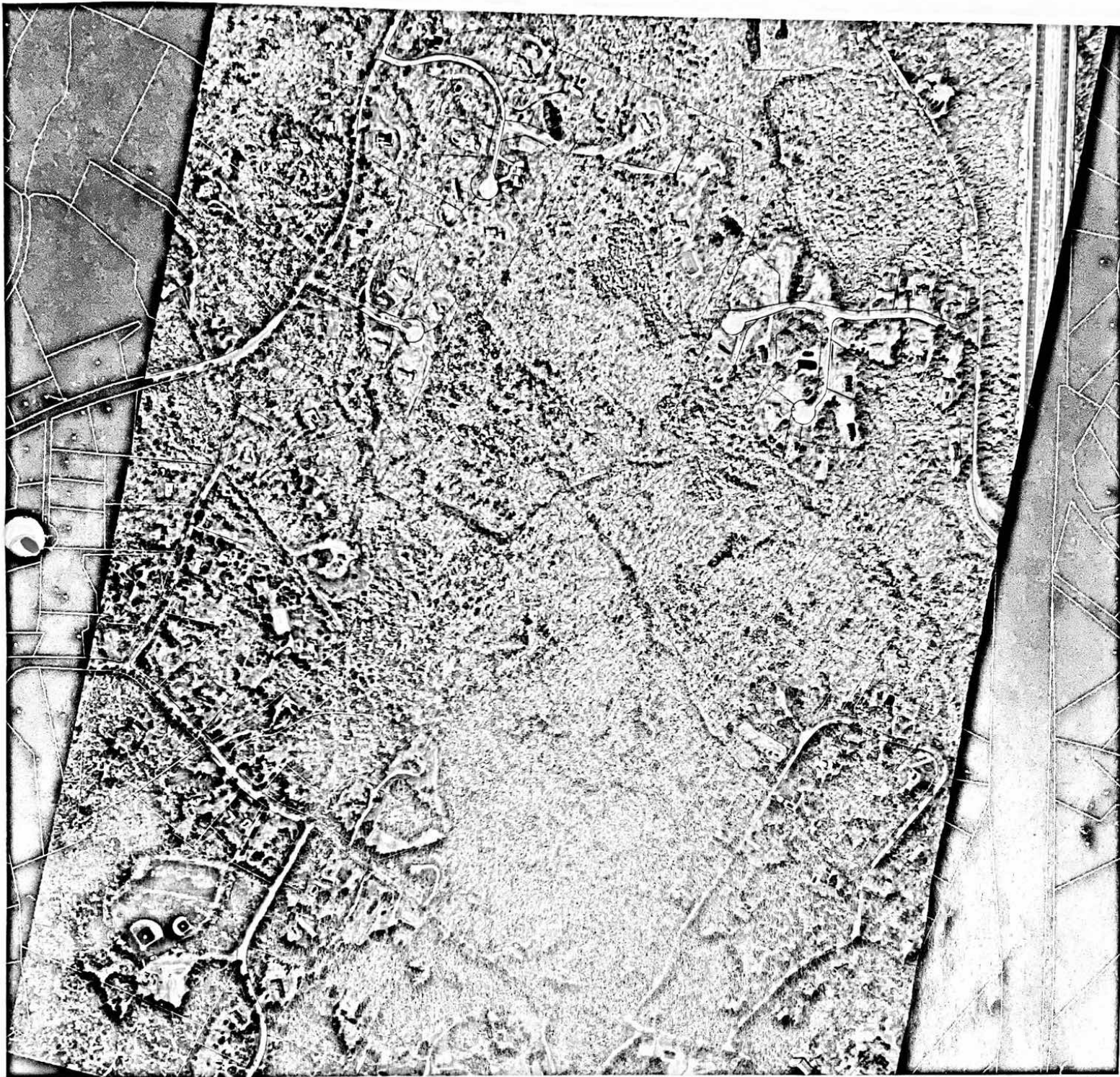
Essex, ss. _____, 2004

Then personally appeared the above-named Paul M. Barclay, Trustee of the
Evergreen Farm Real Estate Trust, and acknowledged the foregoing to be his free act and
deed and that of the Grantor realty trust before me

Notary Public
My Commission Expires: _____



↑ North



(c) Copyright 2002, Pictometry International Corp.

COOLIDGE
100 Acre Woods

8 / 11.1
SEE PL. 272
FL 24

CONSERVATION RESTRICTION BK 11004 PAGE 223

The undersigned, NATHANIEL S. COOLIDGE, of Boxford, Essex County, Massachusetts, in consideration of one dollar (\$1.00) and other good and valuable consideration, hereby grants, without covenants, to ESSEX COUNTY GREENBELT ASSOCIATION, INC. a Massachusetts not-for-profit corporation having its principal office at 82 Eastern Avenue, Essex, Essex County, Massachusetts 01929, a Conservation Restriction on a parcel of land being the "Restriction Area" containing 10.2935 acres, more or less, designated "Parcel A - Area A" as shown on the Key Map on a "Plan of Land in Boxford, MA Property of Nathaniel S. and Camilla Coolidge, 42 Topsfield Road, Boxford, MA" dated January 7, 1991 by Hancock Survey Associates, Inc. (the "Plan") which plan will be recorded herewith.

Said Nathaniel S. Coolidge and his successors in title to the Restriction Area are hereinafter called the "Grantor" and Essex County Greenbelt Association, Inc. and its successors and assigns are hereinafter called the "Grantee".

WHEREAS, the Restriction Area in conjunction with the Grantor's adjoining house and other structures comprise a pleasing vista of the central facilities and surrounding land of a typical historic New England farm, a significant portion of which is presently included within the Boxford Historic District and abuts in the rear over 100 acres of open and wooded land presently owned by the Grantor;

ESSEX NOV - 4 AM 11:45

000171

WHEREAS, the aforesaid 100 acres is part of an estimated 200 acres of contiguous, privately owned woodland bounded by Topsfield Road, Depot Road, Bare Hill Road and I-95 in Boxford with a well used trail network and also is part of one of the six original lots laid out when the Town of Boxford was settled in the 1640's.

WHEREAS, the Restriction Area being in an open, natural and largely undeveloped state is frequently used by others in conjunction with the use of a network of trails on adjoining and other properties by others for hiking, horseback riding, cross country skiing and the observation of wild animals and birdlife, particularly around Still Pond as shown on the Plan;

WHEREAS, the Town of Boxford, through its Conservation Commission and the Boxford Trail Association, are currently studying the feasibility of a program to encourage Boxford residents to grant conservation easements on important trail segments;

WHEREAS, the Restriction area contains and consists of upland forest, vegetated wetlands, open fields and trails and is a distinctive Massachusetts landscape embodying the special character of the region in which it is located;

WHEREAS, the Restriction Area is adjacent to land owned and protected by the Essex County Greenbelt Association, thereby contributing to a corridor of protected open space and continuous trails in the area;

WHEREAS, a portion of the Restriction Area is located within a Conservancy District of the Town of Boxford;

WHEREAS, the 1988 Open Space and Recreation Plan of the Town of Boxford delineates the protection of existing trails for passive recreation as an objective of the Town and identifies conservation restrictions as one of the techniques by the Town to implement its open space objectives.

NOW, THEREFORE, in order to protect and preserve the Restriction Area in perpetuity for conservation purposes, and thereby provide significant scenic, aesthetic, scientific, educational and recreational values to the public generally, the Grantor hereby conveys to the Grantee a Conservation Restriction within the meaning of Chapter 184, Sections 31 through 33 of the General Laws of Massachusetts.

The terms of this Conservation Restriction are as follows:

1. Prohibited Activities. Except as otherwise herein provided, or expressly permitted by the Grantee in writing, the Grantor shall not conduct or carry out nor permit others to conduct or carry out any of the following activities on the Restriction Area:

- (a) Construction or placing of any buildings, mobile homes, roads, signs, tennis courts, septic systems, windmills, solar panels, antennae, billboards or other advertising, utility poles and wires or other structures (temporary or permanent) on or above the ground;
- (b) Dumping or placing of soil or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, solid or chemical waste or

unsightly or offensive materials or the installation of underground storage tanks;

(c) Excavation, dredging or removal of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits in such manner as to alter the surface topography of the Restriction Area;

(d) Any development or other improvement for purposes of residential, commercial, industrial or institutional use;

(e) Use of motorized vehicles of any nature or kind (including but not limited to cars, trucks, motorcycles, all-terrain vehicles and skimbiles), except such as may be necessary in the exercise of the Grantor's reserved rights or for property maintenance, security patrol or to fight fire;

(f) Activities detrimental to flood control, water or soil conservation or erosion control;

(g) Cutting, removal or destruction of trees, forbs, grasses, shrubs or other vegetation; or

(h) Other acts or uses which in the reasonable opinion of the Grantee are detrimental to preservation of the Restriction Area in an open and undeveloped condition.

2. Reserved Rights. Notwithstanding anything contained in Paragraph 1 above, the Grantor reserves for himself and his successors in title the right to conduct or permit the following activities on the Restriction Area subject to all applicable laws then in effect:

- (a) The right to lay out, construct and use on the Restriction Area an access road to all land lying northerly and westerly of the Restriction Area which is now owned or may hereafter be acquired by the Grantor (the "Grantor's Remaining Land"), subject to the prior approval of the Grantee, such approval not to be unreasonably withheld. Said access road may extend across that part of Restriction Area shown and designated as "Part of Area A" on the Plan and all of the Grantor's Remaining Land shall have appurtenant rights therein to use the same for all purposes of access to and from Topsfield Road, including full rights of passage on foot and by vehicle and for the installation therein and thereover of all utility services, such way to be of such width, grade and other characteristics and to be for such purposes as the Planning Board of the Town of Boxford may under present or future bylaws and regulations require as a condition to the approval of any subdivision which may hereafter be laid out on the Grantor's Remaining Land.
- (b) The right to conduct or permit all forms of agriculture, silviculture, horticulture, and floriculture, as commonly construed, on a commercial basis or otherwise, including but not limited to the following:
- (i) the cultivation and harvesting of crops, flowers, berries, hay and other plant products and the

production of compost materials in accordance with recognized natural resource conservation and farm management practices;

(ii) the cultivation and harvesting of timber, firewood and other wood products in accordance with recognized natural resource conservation and forest management practices;

(iii) the raising and grazing of livestock in accordance with recognized natural resource conservation and animal husbandry practices; and

(iv) the making of non-structural improvements, including but not limited to the erection of fences and creation of open water ponds, in furtherance of the foregoing activities.

(c) The maintenance of the Restriction Area including, without limitation, the planting, selective cutting and pruning and periodic mulching with organic matter of trees, shrubs, brush or other vegetation to improve the scenic view and to implement disease prevention measures, provided all such cut vegetation shall be removed promptly from the Restriction Area;

(d) The installation, maintenance, replacement and use of underground utilities, for the transmission of water, sewage, gas, telephone, electricity and other such utilities, provided that the Grantee be given prior notice of such installation, and provided further that

the area served by such utilities shall be limited to the Grantor's Remaining Land, and provided further that the surface of the Restriction Area shall be restored to the same condition that it was in prior to the disturbance thereof;

(e) Activities designed to enhance the ecological, scenic, or natural historical values of the Restriction Area, or to enhance the awareness of such values, including but not limited to the creation of footpaths, the placement of informative signs, benches, small shelters and the like; and

(f) Such other activities as are proposed by the Grantor and expressly approved by the Grantee as consistent with the purposes of this Conservation Restriction.

3. Access by Grantee. The Grantee through its duly designated officers, directors, members, employees or agents shall have the right to enter the Restriction Area at reasonable times and in a reasonable manner for the purpose of inspecting the Restriction Area, ensuring compliance with the terms of this Conservation Restriction and preventing, abating or remedying any violations thereof. Grantee hereby agrees to save Grantor harmless and to indemnify him from all injury, loss, claims, and damage to any person or property arising from the exercise by Grantee, or any person acting by, through or under Grantee, of any rights granted by this instrument, unless arising from any omission, fault, gross negligence or other misconduct of Grantor.

4. Use By Others. Except as provided in the foregoing paragraph, no rights to enter the Restriction Area are granted hereby to the Grantee, the public generally, or to any other person. Notwithstanding the above, the Grantor recognizes that certain trails located within the Restriction Area are presently used by other persons to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet outdoor recreational and educational activities. Grantor hereby consents to the continuance of such activities, provided: (a) that any such activity shall be limited to daylight hours only; (b) that all such activities shall be confined within the limits of established trails; (c) that no motor vehicles of any kind shall be permitted; (d) that no camping, hunting, trapping or discharge of firearms shall be conducted; (e) that no dumping, waste disposal or littering of any kind be allowed; (f) that the picking of flowers, gathering of wood or any other disturbance of the natural order is strictly prohibited; and (g) that no activity of a commercial nature shall be allowed. The Grantor hereby reserves the right (i) to periodically post the Restriction Area against entry and take such other measures as are necessary and appropriate to prevent the ripening of prescriptive rights in the Restriction Area, (ii) to alter the location of existing trails within the Restriction Area, provided that as so relocated, access to and passage through the Restriction Area is not substantially impaired, and (iii) to formally establish trails for foot and horse travel across the Restriction Area in collaboration with Boxford Trail Association

in its program to lay out a network of recreational trails throughout the Town. To the extent permitted by law, the Grantor and the Grantee hereby expressly disclaim any duty to maintain the Restriction Area or warn persons who may enter upon the same.

5. Assignment by Grantee. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign its right, title and interest hereunder to a governmental unit as defined in Section 170(c)(1) of the Internal Revenue Code or to a "qualified organization" as defined in Section 170 (h)(3) of the Internal Revenue Code provided that, as a condition of such assignment, the assignee is capable and committed to hold this Conservation Restriction and to enforce its terms for conservation purposes. In the event Grantee elects to so assign this instrument, Grantee shall first offer to make such assignment to the Conservation Commission of the Town of Boxford.

6. Representations of Grantor and Grantee. Grantor represents that he is the sole owner of the Restriction Area and that there are no prior easements, reservations, restrictions, mortgages or other encumbrances of record affecting the same. Grantee represents that it is a not-for-profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction

exclusively for conservation purposes in perpetuity and to enforce its terms, and that it qualifies as a "Qualified Organization" as that term is defined in Section 170(h)(3) of the Internal Revenue Code of 1954, as amended.

7. Required Notifications. Grantor shall notify Grantee in writing at least thirty (30) days before conveying the Premises, or any part thereof or interest therein (including a lease). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction.

Whenever notice to or approval by the Grantee is required under the provisions of paragraphs 1 or 2, the Grantor shall notify the Grantee in writing not less than sixty (60) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required, the Grantee shall grant, withhold or condition its approval in writing within sixty (60) days of receipt of the Grantor's written request therefor.

8. Eminent Domain. In the event that all or any portion of the Restriction Area is taken by eminent domain or judicial proceedings in the nature of eminent domain so as to extinguish the restrictions imposed hereunder, the Grantor and Grantee shall fully

cooperate in such proceedings to recover the full value of the interests taken and all incidental or direct damages resulting from the taking. All expenses incurred by the Grantor and the Grantee in such action shall be paid out of the recovered proceeds. The remaining recovered proceeds (including, for purposes hereof, proceeds from any lawful sale of the property unencumbered by the restrictions hereunder) shall be distributed to the Grantor and the Grantee in shares proportional to the fair market value of their interests in the Restriction Area on the date of execution of this Conservation Restriction. For this purpose, the Grantee's interest shall be the amount, expressed as a percentage interest, by which the fair market value of the restricted land immediately prior to the execution of this Conservation Restriction is reduced by the restrictions imposed hereby. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purposes set forth herein.

9. Binding Effect; Enforcement. The burdens of the Conservation Restriction shall be deemed to run with the Restriction Area and shall be enforceable against the Grantor and his successors in title in perpetuity. This Conservation Restriction shall be in addition to and not in lieu of any other restrictions or easements of record affecting the Restriction Area. Nothing contained in the Conservation Restriction shall impose on the Grantee any duty to maintain or require that the Restriction Area be maintained in any particular state or condition, notwithstanding its acceptance hereof.

In the event that a breach of this Conservation Restriction by the Grantor or by a third party comes to the attention of the Grantee, the Grantee shall notify the Grantor in writing of such a breach. The Grantor shall, within 30 days after receipt of such notice, undertake actions reasonably calculated to cure the conditions constituting such a breach. If the Grantor fails to take such corrective action, the Grantee may at its discretion undertake any and all actions reasonably necessary to cure said breach. In addition, the Grantee shall have the right to enforce this Conservation Restriction by proceedings at law or in equity, including the right to obtain injunctive relief. In the event a court of competent jurisdiction decrees that the Grantor has caused or allowed a breach of this Conservation Restriction, the Grantor shall bear the cost of corrective action, including repair or restoration as appropriate, and shall reimburse the Grantee for legal fees incurred in the enforcement of this Conservation Restriction. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver. If any provision of this Conservation Restriction shall to any extent be held invalid, the remainder shall not be affected.

10. Recording; Effective Date. This Conservation Restriction may be recorded prior to approval thereof by the Selectmen of the Town of Boxford and by the Secretary of Environmental Affairs, or either of them and, if so recorded, shall be re-recorded when such

APPROVAL BY SELECTMEN-TOWN OF BOXFORD

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that we approve the foregoing Conservation Restriction for the preservation of the natural and scenic resources of said Town pursuant to G.L. c. 184, Section 32.

Date: April 8, 1991

William J. Bismarck

Robert W. Conry

Philip J. [illegible]

APPROVAL BY SECRETARY OF ENVIRONMENTAL AFFAIRS

The undersigned Secretary of the Executive Office of Environmental Affairs, Commonwealth of Massachusetts, hereby certifies that the foregoing Conservation Restriction has been approved as being in the public interest pursuant to Massachusetts G.L. c. 184, Section 32.

Date: 5.29.91

Enda J. Tierney
Secretary, Executive Office
of Environmental Affairs

approvals have been obtained. Such approvals shall be effective as of and shall relate back to the date of this instrument.

Inasmuch as there is no monetary or other consideration of substance for this Conservation Restriction, no Massachusetts documentary stamps are affixed hereto.

IN WITNESS WHEREOF, the said Nathaniel S. Coolidge has hereunto set his hand and seal this 7th day of April, 1991.

Nathaniel S. Coolidge
Nathaniel S. Coolidge

COMMONWEALTH OF MASSACHUSETTS

Essex
Suffolk, ss.

April 7th, 1991

Then personally appeared before me the above-named Nathaniel S. Coolidge and acknowledged the foregoing instrument to be his free act and deed.

John B. Long
Notary Public
My commission expires: November 27, 1992

Essex County Greenbelt Association, Inc. hereby accepts this Conservation Restriction and agrees to be bound by its terms.

Essex County Greenbelt
Association, Inc.

Date: April 15, 1991

By: Franklin H. Hylton
hereunto duly authorized

BK 11677 PG 122

12/29/92 01:18 Inst 294

CONSERVATION RESTRICTION

The undersigned, NATHANIEL S. COOLIDGE, of Boxford, Essex County, Massachusetts, in consideration of one dollar (\$1.00) and other good and valuable consideration, hereby grants, without covenants, to ESSEX COUNTY GREENBELT ASSOCIATION, INC. a Massachusetts not-for-profit corporation having its principal office at 82 Eastern Avenue, Essex, Essex County, Massachusetts 01929, a Conservation Restriction on two contiguous parcels of land being together the "Restriction Area", the first parcel being designated "Parcel A - Area B" containing 7.7264 acres more or less and the second parcel being designated Lot 1B containing 7,171 square feet more or less as shown on both the main survey and on the Key Map on a "Plan of Land in Boxford, MA Property of Nathaniel S. and Camilla Coolidge, 42 Topsfield Road, Boxford, MA" dated January 7, 1991 by Hancock Survey in Associates, Inc. (the "Plan") recorded with Essex South Registry of Deeds Plan Book 272, as Plan 24.

Said Nathaniel S. Coolidge and his successors in title to the Restriction Area are hereinafter called the "Grantor" and Essex County Greenbelt Association, Inc. and its successors and assigns are hereinafter called the "Grantee".

WHEREAS, the Restriction Area contains and consists of open pastures, woods, vegetated wetlands, trails and farm roads, a barn, paddock and farm pond (designated "Still Pond", spring fed

on the Plan), all of which have been used as immediately adjacent land and facilities to a farm house presently situated on Lot 1A as shown on the Plan containing 2.0011 acres more or less (the "Houselot"), all of which has a history as a working farm extending back more than 300 years;

WHEREAS, the Restriction Area in conjunction with the Houselot comprise a pleasing vista of the central facilities and surrounding land of a typical historic New England farm, all of which is presently included within the Boxford Historic District and abuts in the rear over 100 acres of open and wooded land presently owned by the Grantor;

WHEREAS, the aforesaid 100 acres is part of an estimated 200 acres of contiguous, privately owned woodland bounded by Topsfield Road, Depot Road, Bare Hill Road and I-95 in Boxford with a well used trail network and also is part of one of the six original lots laid out when the Town of Boxford was settled in the 1640's.

WHEREAS, the Restriction Area being in an open, natural and largely undeveloped state is frequently used by others in conjunction with the use of a network of trails on adjoining and other properties by others for hiking, horseback riding, cross country skiing and the observation of wild animals and birdlife, particularly around the farm pond;

WHEREAS, the Restriction area contains and consists of upland forest, vegetated wetlands, open fields and trails and is

a distinctive Massachusetts landscape embodying the special character of the region in which it is located;

WHEREAS, the Restriction Area is adjacent to land of the Grantor under a perpetual conservation restriction held by the Essex County Greenbelt Association, thereby contributing to a corridor of protected open space in the area;

(b) Dumping or placing of soil or other substances on the

WHEREAS, a portion of the Restriction Area is located within a Conservancy District of the Town of Boxford;

WHEREAS, the 1988 Open Space and Recreation Plan of the Town of Boxford delineates the protection of existing trails for passive recreation as an objective of the Town and identifies conservation restrictions as one of the techniques by the Town to implement its open space objectives.

NOW, THEREFORE, in order to protect and preserve the Restriction Area in perpetuity for conservation purposes, and thereby provide significant scenic, aesthetic, scientific, educational and recreational values (collectively, the "conservation values") to the public generally, the Grantor hereby conveys to the Grantee a Conservation Restriction within the meaning of Chapter 184, Sections 31 through 33 of the General Laws of Massachusetts.

The terms of this Conservation Restriction are as follows:

1. Prohibited Activities. Except as otherwise herein provided, or expressly permitted by the Grantee in writing, the Grantor shall not conduct or carry out nor permit others to

conduct or carry out any of the following activities on the
 Restriction Area:

- (a) Construction or placing of any buildings, mobile homes, roads, signs, billboards or other advertising, utility poles and wires or other structures (temporary or permanent) on or above the ground;
- (b) Dumping or placing of soil or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, solid or chemical waste or unsightly or offensive materials or the installation of underground storage tanks;
- (c) Excavation, dredging or removal of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits in such manner as to alter the surface topography of the Restriction Area;
- (d) Any development or other improvement for purposes of residential, commercial, industrial or institutional use;
- (e) Use of motorized vehicles of any nature or kind (including but not limited to cars, trucks, motorcycles, all-terrain vehicles and skimobiles), except such as may be necessary in the exercise of the Grantor's reserved rights or for property maintenance, security patrol or to fight fire;
- (f) Activities detrimental to flood control, water or soil conservation or erosion control; or

- (g) Other acts or uses which in the reasonable opinion of the Grantee are detrimental to preservation of the Restriction Area in an open and undeveloped condition.
- (h) Cutting, removal or destruction of trees, forbs, grasses, shrubs or other vegetation.
- (i) Any other use of the Restriction Area or activity which would impair the conservation values unless such use or activity is necessary and desirable for the protection of the conservation values that are subject to this restriction.

2. Reserved Rights. Notwithstanding anything contained in Paragraph 1 above, the Grantor reserves for himself and his successors in title the right to conduct or permit the following activities on the Restriction Area subject to all applicable laws then in effect:

- (a) Subject as hereinafter provided, the right to lay out, construct and use on the Restriction Area an access road to all land lying northerly and westerly of the Restriction Area which is now owned or may hereafter be acquired by the Grantor, (the "Grantor's Remaining Land"). Said access road may extend across the Restriction Area and all of the Grantor's Remaining Land shall have appurtenant rights therein to use the same for all purposes of access to and from Topsfield Road, including full rights of passage on foot and by vehicle and for the installation therein and thereover

of all utility services, such way to be of such width, grade and other characteristics and to be for such purposes as the Planning Board of the Town of Boxford may under present or future bylaws and regulations require as a condition to the approval of any subdivision which may hereafter be laid out on the Grantor's Remaining Land. In any action taken by the Grantor to lay out an access road over the Restriction Area, the Grantor agrees to take into account a similar reservation for the creation of an access road to the Grantor's Remaining Land was contained in a grant of Conservation Restriction covering contiguous land which was given by the Grantor to the Grantee by instrument dated April 7, 1991, recorded with said Deeds Book 11004, Page 223, it being the intention of the Grantor that there be only one such access road serving the Grantor's Remaining Land which may be located in part on the Restriction Area covered by the earlier grant and in part on the Restriction Area covered by this grant or entirely on either as the Grantor may determine. Before proceeding to lay out such access road, Grantor shall obtain Grantee's approval thereof which approval shall not be unreasonably withheld.

- (b) The right to maintain, repair, restore and in the event of destruction from any cause, to rebuild the existing barn (shown as "wood barn" on the Plan), the pump house

(shown as "wood pump house" on the Plan), and any other structures and improvements such as farm and paddock fences, dams, culverts and bridges now on the Restriction Area subject to the prior approval of the Grantee, such approval not to be unreasonably withheld.

(c) The right to conduct or permit all forms of agriculture, silviculture, horticulture, and floriculture, as commonly construed, on a commercial basis or otherwise, including but not limited to the

under following:

- (i) the cultivation and harvesting of crops, flowers, berries, hay and other plant products and the production of compost materials in accordance with recognized natural resource conservation and farm management practices;

- (ii) the cultivation and harvesting of timber, firewood and other wood products in accordance with recognized natural resource conservation and forest management practices;

- (iii) the raising and grazing of livestock in accordance with recognized natural resource conservation and animal husbandry practices;

- (iv) hunting and trapping of wildlife; and

- (v) the making of non-structural improvements, including but not limited to the erection of

- fences and creation of open water ponds, in
expressly furtherance of the foregoing activities.
- (d) The maintenance of the Restriction Area including, without limitation, the planting, selective cutting and pruning and periodic mulching with organic matter of trees, shrubs, brush or other vegetation to improve the scenic view and to implement disease prevention measures, provided all such cut vegetation shall be removed promptly from the Restriction Area;
- (e) The installation, maintenance, replacement and use of underground utilities, for the transmission of water, sewage, gas, telephone, electricity and other such utilities, provided that the area served by such utilities shall be limited to the Grantor's Remaining Land, and provided further that the surface of the Restriction Area shall so far as practicable be restored to the same condition that it was in prior to the disturbance thereof, and provided further that the Grantee be given prior notice of such installation;
- (f) Activities designed to enhance the ecological, scenic, or natural historical values of the Restriction Area, or to enhance the awareness of such values, including but not limited to the creation of footpaths, the placement of informative signs, benches, small shelters and the like; and such activity shall be limited to daylight hours only; that all such activities shall be confined within the limits of

(g) Such other activities as are proposed by the Grantor and expressly approved by the Grantee as consistent with the purposes of the Conservation Restriction.

3.1 Access by Grantee. The Grantee through its duly designated officers, directors, members, employees or agents shall have the right to enter the Restriction Area at reasonable times and in a reasonable manner for the purpose of inspecting the Restriction Area, ensuring compliance with the terms of this Conservation Restriction and preventing, abating or remedying any violations thereof. Grantee hereby agrees to save Grantor harmless and to indemnify him from all injury, loss, claims, and damage to any person or property arising from the exercise by Grantee, or any person acting by, through or under Grantee, of any rights granted by this instrument, unless arising from any omission, fault, gross negligence or other misconduct of Grantor.

4. Use By Others. Except as provided in the foregoing paragraph, no rights to enter the Restriction Area are granted hereby to the Grantee, the public generally, or to any other person. Notwithstanding the above, the Grantor recognizes that certain trails located within the Restriction Area are presently used by other persons to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet outdoor recreational and educational activities. Grantor hereby consents to the continuance of such activities, provided: (a) that any such activity shall be limited to daylight hours only; (b) that all such activities shall be confined within the limits of

established trails; (c) that no motor vehicles of any kind shall be permitted; (d) that no camping, hunting, trapping or discharge of firearms shall be conducted; (e) that no dumping, waste disposal or littering of any kind be allowed; (f) that the picking of flowers, gathering of wood or any other disturbance of the natural order is strictly prohibited; and (g) that no activity of a commercial nature shall be allowed. The Grantor hereby reserves the right (i) to periodically post the Restriction Area against entry and take such other measures as are necessary and appropriate to prevent the ripening of prescriptive rights in the Restriction Area, (ii) to alter the location of existing trails within the Restriction Area, provided that as so relocated, access to and passage through the Restriction Area is not substantially impaired, and (iii) to formally establish trails for foot and horse travel across the Restriction Area in collaboration with Boxford Trail Association in its program to lay out a network of recreational trails throughout the Town. To the extent permitted by law, the Grantor and the Grantee hereby expressly disclaim any duty to maintain the Restriction Area or warn persons who may enter upon the same.

5. Assignment by Grantee. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign its right, title and interest hereunder to a governmental unit as defined in Section 170(c)(1) of the Internal Revenue Code or to a "qualified organization" as defined in Section 170 (h)

FILE - Coolidge
100 Ac Wood

MCCANN & MCCANN, P.C.

ATTORNEYS AT LAW
435 NEWBURY STREET
DANVERS, MASSACHUSETTS 01923
TELEPHONE: 978-739-8484
FACSIMILE: 978-739-8455
E-MAIL: RMCCANN@MCCANNLAW.COM

July 29, 2004

Boxford Trails Association/Boxford Open Land Trust
7 Elm Street, P.O. Box 95
Boxford, MA 01921

Attention: Nancy Merrill, President

**RE: Barclay Property
42 Topsfield Road, Boxford, MA**

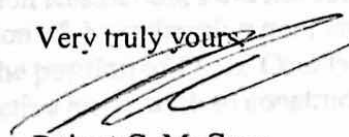
Dear Nancy:

As you may recall, I represented Nat Coolidge at the time that he placed the Conservation Restriction on the property at 42 Topsfield Road, Boxford, MA, in favor of BTA-BOLT. The property was subsequently sold to Paul and Heidi Barclay, who had maintained the property in the condition that it was at the time of the sale (with the exception of upgrading the existing house).

They are now in the process of marketing the property for sale and have had several questions regarding the use of the property. I have sent a letter to Essex County Greenbelt, Attention: Ed Becker, as most of the questions relate to the land that is subject to the Essex County Greenbelt Association Conservation Restriction. However, to the extent that BTA-BOLT has an interest in a portion of the property, I am asking that you review the enclosed letter to Ed Becker and advise me, at your convenience, what the position of BTA-BOLT might be should similar considerations be given to the land subject to the BTA-BOLT Conservation Restriction.

I look forward to hearing from you in regard to the above.

Very truly yours,


Robert C. McCann

RCM/cac

MCCANN & MCCANN, P.C.

ATTORNEYS AT LAW

435 NEWBURY STREET

DANVERS, MASSACHUSETTS 01923

TELEPHONE: 978-739-8484

FACSIMILE: 978-739-8455

E-MAIL: RMCCANN@MCCANNLAW.COM

July 29, 2004

Essex County Greenbelt Association
82 Eastern Avenue
Essex, MA 01929

Attention: Edward O. Becker, Executive Director

**RE: Barclay Property
42 Topsfield Road, Boxford, MA**

Dear Ed:

As you may recall, I represented Nat Coolidge at the time that the 1992 Conservation Restriction was granted to Essex County Greenbelt Association as well as in connection with the Conservation Restriction that was granted to BTA-BOLT. I have recently been contacted by Paul and Heidi Barclay, the couple who bought the property from Nat Coolidge. They are in the process of selling the property and have the property on the market, subject to the Conservation Restrictions (two to Essex County Greenbelt Association and one to BTA-BOLT).

As I'm sure you would anticipate, several parties interested in the property have been asking questions about the Conservation Restrictions, what might be permitted and what might be granted should requests be submitted to Essex County Greenbelt Association and/or BTA-BOLT. Mr. & Mrs. Barclay have requested that I contact you to ask for an interpretation of the restriction as well as to determine whether or not certain expansions of the existing barn may occur. The information sought is as follows:

1. Whether or not a swimming pool and/or tennis court may be built on the property. In reviewing the Conservation Restriction, I did not see any specific prohibition against construction of the swimming pool and/or tennis court, but wanted to determine what the position of Essex County Greenbelt Association might be should a prospective buyer wish to construct the same.
2. There have been several questions regarding the ability to expand the barn to house animals. One has been in the context of a "riding arena" for the interested parties' daughter. This would require an expansion of the existing

barn to the rear towards the land, which is subject to the BTA-BOLT Conservation Restriction. Other interested parties have asked whether or not additional barns, for the purpose of housing animals, might be permitted.

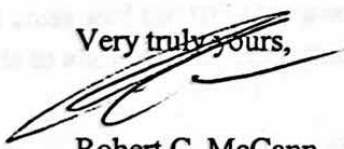
I noted in the Conservation Restriction, on Page 9 in Subparagraph (g) that "such other activities as are proposed by the Grantor and expressly approved by the Grantee as consistent with the purposes of the Conservation Restriction". Also, the Conservation Commission permits the raising and grazing of livestock, etc. One of the issues that has been raised is the limited space available to house livestock.

In order to assist the Barclays in providing information to prospective purchasers, I would request that you review the information above and advise me what the position of Essex County Greenbelt Association might be.

I am sending a copy of this letter to BTA-BOLT, Attention Nancy Merrill, President, to let her know of the potential concerns and/or requests relating to the property and asking for her opinion regarding the conditions that BTA-BOLT might have on the portion of the 100 acres that are subject to their Conservation Restriction.

I look forward to hearing from you in regard to the above.

Very truly yours,


Robert C. McCann

RCM/cac